

		respective positions at least 7 court days prior to the continued hearing. No other briefing is permitted. Moving Defendants to give notice.
8	24-01375951 LaSorte vs. Ghassemieh	1) Motion for Leave to Amend 2) Motion for Terminating Sanctions Motion 1 – Motion for Terminating Sanctions Plaintiff Christina A. LaSorte’s Motion for Terminating Sanctions is DENIED. Plaintiff seeks termination sanctions against Defendant Majid Ghassamieh on the grounds that Defendant failed to comply with two Court orders issued on 2/27/25. Code of Civil Procedure section 2023.010 states, in part, “Misuses of the discovery process include, but are not limited to, the following: . . . [¶] (d) Failing to respond or submit to an authorized method of discovery. . . . [¶] (g) Disobeying a Court order to provide discovery.” Courts are authorized to impose a range of penalties for disobeying a discovery order, including monetary sanctions, evidentiary sanctions, issue sanctions, and terminating sanctions. (Code Civ. Proc., §§ 2023.010, 2023.030;.) The court in <i>J.W. v. Watchtower Bible and Tract Society of New York, Inc.</i> (2018) 29 Cal.App.5th 1142, 1169 explains, “courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly. [Citation.] A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party's fundamental right to a trial, thus implicating due process rights. [Citation.] The trial court should select a sanction that is ‘ “ ‘tailor[ed] ... to the harm caused by the withheld discovery.’ ” ’ [Citation.] ‘ “[S]anctions ‘should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.’ ” ’ [¶] The discovery statutes thus ‘evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.’ [Citation.] Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citation], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.” On 2/27/25, the Court granted two Motions to Compel Further Responses filed by Plaintiff and ordered Defendant to provide verified, supplemental responses to Form Interrogatories (FROG), Set Four, No. 15.1 and FROG, Set Two, 17.1 (relating to Request for Admissions (RFA), Set One, Nos. 8, 10, 11 and 13) within 20 days. (ROA 132, 2/27/25 Minute Order.) The Court notes Plaintiff incorrectly states the underling motion to compel re No. 17.1 concerned RFA Nos. 8-13 and 17. However, the supporting separate statement, and therefore the

Court's subsequent order, only concerned Nos. 8, 10, 11 and 13. Defendant opposed the underlying motions, appeared remotely at the hearing and submitted on the tentative. (ROA 132.)

When Defendant failed to serve supplemental responses as ordered, Plaintiff emailed Defendant three times about his past due responses. (Guizar Decl. ¶¶ 4-6.) Defendant failed to respond. (Id., at ¶ 7.)

In his opposition regarding No. 15.1 (ROA 246), Defendant contends he provided a verified supplemental response to No. 15.1. The Court notes Defendant's supplemental response and verification are dated 5/31/26, the day before Defendant filed his opposition. (Ghassemieh Decl., Attch. A.) Defendant's supplemental response covers all affirmative defenses rather than identifying each affirmative defense asserted in his answer and specifying the facts, witnesses and documents supporting the affirmative defenses as required by the interrogatory. The Court's 2/27/25 order identified the same defect.

As to No. 17.1, Defendant's opposition (ROA 244) attempts to relitigate the merits of the underlying motion to compel by stating his responses to RFA Nos. 8, 10, 11 and 13 are complete, accurate, unqualified responses that do not require further explanation. Defendant opposed the underlying motion on the same grounds. In its 2/27/25 order, the Court order explained why Defendant's argument was incorrect. Namely, the Court explained: "Defendant incorrectly reads 17.1. A party must provide information to RFAS that are not an 'unqualified admission' not an 'unqualified response.' Because Defendant denied RFA Nos. 8, 10, 11 and 13, he must provide a response to 17.1." (ROA 132.)

Despite Defendant's failure to comply with the Court's 2/27/25 orders, the Court declines at this time (and without prejudice to the moving party seek the same relief in the future) to impose terminating sanctions. The record does not clearly show lesser sanctions would be ineffective.

Defendant is ordered to comply with the Court's 2/27/25 orders and provide verified supplemental discovery responses that are without objection within 20 days of the date of this hearing. If Defendant fails to promptly comply with this order, the Court will consider imposing sanctions which may include monetary sanctions or terminating sanctions including striking Defendant's answer and entering default.

Motion 2 – Motion for Leave to Amend

Plaintiff Christina A. LaSorte's Motion for Leave to Amend is GRANTED.

Plaintiff seeks leave to amend her complaint to add a request for damages and to remove Merchants Bonding Company (Mutual) as a defendant.

The court may, in the furtherance of justice, and on such terms as may be proper, allow amendment of a complaint at any time before or after

commencement of trial. (Code Civ. Proc. §§ 473(a)(1), 576.) There is a general policy of great liberality in allowing amendment of pleadings at any stage of the litigation to allow cases to be decided on their merits. (*Desny v. Wilder* (1956) 46 Cal.2d 715, 751.)

As *Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163 [cleaned up] explains:

“It is well established that California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others. Indeed, it is a rare case in which a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case. Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.”

Plaintiff seeks to remove Merchants as a defendant because she dismissed Merchants with prejudice on 10/15/25 after she resolved her claims against it. Defendant does not oppose this portion of the amendment.

Plaintiff also seeks to add a request for damages related to her first cause of action for violation of the Consumers Legal Remedies Act (CLRA). Plaintiff’s first cause of action currently only seeks injunctive relief. Under the CLRA, consumers may initiate an action for injunctive relief at any time. (Civ. Code § 1782, subd. (d).) The CLRA provides, in relevant part: “Not less than 30 days after the commencement of an action for injunctive relief, and after compliance with [the notice requirement], the consumer may amend his or her complaint *without leave of court* to include a request for damages.” (Civ. Code § 1782, subd. (d) [emphasis added].)

Plaintiff complied with the CLRA’s notice requirement under Civil Code section 1782, subdivision (a), by sending Defendant a CLRA Notice and Demand Letter on January 23, 2024. (See Guizar Decl., at ¶ 7; COE, Ex.3.) Defendant received the letter and did not offer an appropriate correction within 30 days. (See Guizar Decl., at ¶ 8; COE, Ex. 4.) Plaintiff therefore has established that she may amend her complaint to add a request for damages without leave of court pursuant to section 1782, subdivision (d).

Plaintiff emailed the proposed First Amended Complaint (FAC) to Defendant on November 3, 2025 along with a Stipulation to file the FAC. (See Guizar Decl., at ¶¶ 9-10; COE, Exs. 2, 5.) Defendant did not respond. (See Guizar Decl., at ¶ 11.) Plaintiff filed the instant motion on November 20, 2025.

Defendant argues he would be prejudiced by allowing the amendment to add the CLRA damages so close to trial because it would require additional discovery to defend this “new matter”.

		Plaintiff has not explained why she waited over a year and a half to file the instant motion. Nevertheless, Defendant was on notice that Plaintiff would amend the complaint to add CLRA damages. More specifically, the complaint provides: “At this time, Plaintiff does not seek “damages” under Civil Code § 1780. The CLRA provides that a complaint for violations may be amended without leave of court should the violations not be remedied within 30 days to add a prayer for damages. Should the violations complained of herein not be remedied within the requisite time frame, Plaintiff will amend the complaint to seek all available relief under the CLRA.” (Compl., ¶ 45.) Further, the prayer for relief states, “no request for damages is made under the CLRA until such a time as the CLRA cause of action is amended to add damages”. (Compl., Prayer for Relief, ¶ 6.) Thus, from the time Defendant was served with the complaint, he has been fully aware that Plaintiff would seek damages under the CLRA if the violations were not remedied within 30 days. In addition, the amendment to add the request for CLRA damages does not add “new matter” as Defendant contends. The FAC does not add new violations, causes of action, facts or circumstances. “[W]here an amendment provides merely the addition of matters essential to make the original cause of action complete the amendment should certainly be allowed by the court. Such an amendment effects no change in the nature of the case, and can therefore cause no surprise or prejudice to the adverse party.” (<i>In re Hunter's Estate</i> (1961) 194 Cal.App.2d 859, 865 [cleaned up].) Accordingly, Defendant has not shown he will be prejudiced by the amendment. The motion complies with California Rules of Court, Rule 3.1324. Based on the policy favoring leave to amend, the motion for leave to amend is GRANTED. Plaintiff is to file the First Amended Complaint within 10 days.
9	22-01260184 <i>Melikian vs. Moradian</i>	Motion to Set Aside/Vacate Dismissal The unopposed motion of plaintiff Arshavir Melikian for an order vacating the dismissal of the action entered on June 25, 2025 is GRANTED. Plaintiff asks that the dismissal be set aside under the provision for mandatory relief for attorney fault in Code Civ. Proc. § 473(b). That provision states: Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever